

		Here, Plaintiff filed her Complaint for negligence on 8/25/21. (ROA 2). She sued Defendant New Skin and Body Aesthetics Inc. Plaintiff alleged in relevant part as follows: “the Defendants, and each of them, negligently and tortuously failed to possess or exercise that degree of knowledge or skill that would ordinarily be possessed and exercised by physicians and surgeons, hospitals, nurses, surgical technicians, attendants, medical clinics, and the like, engaged in said professions in the same locality as Defendants, and each of them, in that the Defendants, and each of them negligently and unlawfully failed to properly and correctly diagnose, render care, and provide treatment on, to perform proper surgery on, and prescribe and administer medicine and drugs for the condition of Plaintiff. Specifically, on Wednesday, October 14, 2020, Plaintiff underwent laser hair removal in her Brazilian area at the hands of a nurse, Suwan Cheong, B.R.N., who was an employee of Defendant NEW SKIN AND BODY AESTHETICS, INC. During the course of the procedure, Plaintiff is informed and believes, and thereon alleges, that at all times herein alleged, nurse <u>Cheong had the wrong settings on the laser removal tool and lasered the skin of the suprapubic and perineal area too long so as to cause Plaintiff fourth-degree, third-degree, second-degree and first-degree burns to her genitourinary system, i.e. her genital area.</u> Plaintiff is informed and believes, and thereon alleges, that at all times herein alleged, <u>there was an absence of physician supervision before and during the procedure. And, that nurse Cheong was inadequately trained to perform said procedure.</u> Plaintiff is informed and believes, and thereon alleges, that at all times herein alleged, Plaintiff has permanent scarring to her genitalia and its surrounding area. (Compl., ¶9, emphasis added.) So, as of the filing of the Complaint, Plaintiff knew that the nurse who performed the procedure was Suwan Cheong and that she was negligent in performing the procedure and improperly trained. Unlike the other Doe Defendants, reference to the Complaint shows that the doe-procedure cannot be used against Ms. Cheong. Despite these judicial admissions in the Complaint, Plaintiff chose not to name Ms. Cheong as a defendant <u>until</u> the Doe Amendment on 7/24/23, <u>almost two years</u> after filing the Complaint. (ROA 136). Defendant has met her burden to show that Plaintiff was not actually ignorant of her identity and the facts constituting her negligence claim at the time she filed in the Complaint. Although CCP § 474 is to be “liberally construed,” its requirements, as so construed, are mandatory. (<i>Fireman’s Fund Ins. Co. v. Sparks Const., Inc.</i> (2004) 114 Cal.App.4th 1135, 1143-1144.) In opposition, Plaintiff raises no triable issue of material fact. Instead, she presents extraneous facts to show that Ms. Cheong faced disciplinary actions and purportedly perjured herself during a deposition on 5/22/23 in this case. These facts do not create a triable issue with regard to Plaintiff’s admitted knowledge of Defendant’s identity and facts creating her liability, including negligently performing the procedure and handling the laser without proper training. Thus, the Motion is granted. Moving Defendant shall serve notice.
105	2023-01350541	Demurrer to Complaint The Court sustains Defendant Santa Ana Police Department’s demurrer to the Complaint in

	Luna vs. City of Santa Ana	this case without leave to amend. Moving Defendant argues that Santa Ana Police Department, asserting is not a separate entity from Defendant City of Santa Ana. Plaintiffs concede the point by failing to respond to this argument. Further, the City of Santa Ana’s repeated judicial admissions that it is the proper party subject to all orders and relief the Court may grant also supports sustaining the demurrer. Defendants shall serve notice of this Order.
106	2024- 01407287 Mirrafati vs. California Receivership Group, Inc.	1. Demurrer to Complaint 2. Case Management Conference The general and special demurrer by Defendants California Receivership Group, Inc. (“Receivership Group”) and Mark Adams (“Adams”) (collectively, “Defendants”) to the Complaint filed by Plaintiffs Sayed Mirrafati and Mira Properties, LLC (collectively, “Plaintiffs”) is sustained in part and overruled as moot in part with 60 days leave to amend. As an initial matter, the Court notes Defendants proofs of service for their moving papers and reply did not include the server’s email address. (Code Civ. Proc., § 1013b, subd. (b)(1).) Plaintiffs opposed the demurrer without objecting to service. Subject to any objections regarding service of Defendants’ reply, the Court rules as follows. Defendants’ requests for judicial notice are granted. (Evid. Code, § 452, subd. (d).) However, the Court may not take judicial notice of the truth of the matter stated in the documents. (<i>Richtek USA, Inc. v. uPI Semiconductor Corp.</i> (2015) 242 Cal.App.4th 651, 659-660.) Judicial notice of other court records and files is limited to matters that are indisputably true. This generally means judicial notice is limited to the orders and judgments in the other court file, as distinguished from the contents of documents filed therein. (<i>Fremont Indem. Co. v. Fremont Gen. Corp.</i> (2007) 148 Cal.App.4th 97, 113.) The court cannot accept as true the contents of pleadings or exhibits in the other action just because they are part of the court record or file. Such documents are inadmissible hearsay. (<i>Day v. Sharp</i> (1975) 50 Cal.App.3d 904, 914.) Plaintiffs’ claims against Defendants arise out of Defendants efforts to collect on a judgment in Adams’ favor as a receiver in a separate action. “The rule requiring court permission to sue a receiver stems from Code of Civil Procedure section 568.” (<i>Vitug v. Griffin</i> (1989) 214 Cal.App.3d 488, 492.) Code of Civil Procedure section 568 provides as follows, “The receiver has, under the control of the Court, power to bring and defend actions in his own name, as receiver; to take and keep possession of the property, to receive rents, collect debts, to compound for and compromise the same, to make transfers, and generally to do such acts respecting the property as the Court may authorize.” “As a general proposition a receiver has no official duties and is not a proper party to any action after being discharged by the court. (<i>Brockway etc. Co. v. County of Placer</i> (1954) 124 Cal.App.2d 371, 375, 268 P.2d 524.) The discharge order operates as res judicata as to any claims of liability against the receiver in her official capacity. (<i>Aviation Brake Systems Ltd. v. Voorhis</i> (1982) 133 Cal.App.3d 230, 234, 183 Cal.Rptr. 766.)” (<i>Vitug v. Griffin</i>, 214 Cal.App.3d at 494.) “A receiver is an officer of the court possessing the property for the court...Consequently, a receiver is liable in tort solely in an official capacity, not a personal one...‘He is not personally liable for torts committed in the performance of his receivership duties; liability is in his <i>official</i>